(1) The claimant will be required to submit in support of claims for damage to fences, buildings, motor vehicles, and similar property which has been repaired or replaced, an itemized bill for repairs or replacements certified to as correct by the repairman or other proper party or, if paid, an itemized receipt evidencing payment; if not repaired or replaced a signed itemized estimate or estimates of the cost thereof.

(2) In support of claims for damage to crops, trees, land, or similar property, the claimant will be required to submit an itemized signed estimate or estimates of the cost of repairs or restoration, supported by evidence of the number of acres of land or of crops or trees alleged to have been damaged, the normal yield per acre and the market value of the property per unit of measure common to the property damaged, or the estimated length of time the land will be unfit for grazing and the normal rental value per acre of similar land in the vicinity.

(e) *Claims for use or occupancy of land.* Claims for damage to land or crops will not include a charge for the use or occupancy of the land by the National Guard, which is a question of payment to be made under the contract of lease of occupancy.

(f) *Claims based on contracts.* If the claim is based on contract, a copy of the contract or specific reference to the provisions thereof will be furnished by the claimant.

(g) *Signatures.* All papers signed by the claimant in connection with a particular case will bear identical signatures.

§ 1101.54 *Air National Guard claims.* Claims arising subsequent to July 1, 1949 and not to exceed $500 in any one claim for damages to or loss of private property incident to the operation of Air National Guard camps of instruction either during the stay of Air National Guard units at such camps or while en route thereto or therefrom may be forwarded to the National Guard Bureau for onward transmission to the Secretary of the Air Force.

§ 1101.55 *Claims against the Army National Guard.* Except as required in the discharge of his proper official duties, no person in the military service of or employed by the Army National Guard will furnish any information which can be used as a basis for a claim against the Army National Guard or aid or assist in the prosecution or support of a claim against the Army National Guard. Claimants or their authorized representatives shall not be permitted to examine any part of the evidence of record, except that submitted by such claimants, without prior approval of the office of the Chief, National Guard Bureau. (In this connection see § 536.10, Chapter V of this Title.)

§ 1101.56 *Claims against the United States.* (a) Except as required in the discharge of his proper official duties, no person in the military service of or employed by the Army National Guard will furnish any information which can be used as the basis for a claim against the United States or aid or assist in the prosecution or support of a claim against the United States.

(b) Claims for damage to or loss or destruction of property, real or personal, or for personal injury or death caused by military personnel or civilian employees of the Department of the Army or of the Army while acting within the scope of their employment, or otherwise incident to noncombat activities of the Department of the Army or of the Army, including claims for damage to or loss or destruction, by criminal acts, of registered or insured mail while in the possession of the United States military authorities, claims for damage to or loss or destruction of personal property bailed to the Government and claims for damages to real property incident to the use and occupancy thereof, whether under a lease to the Government of the United States, express or implied, or otherwise, except those cognizable under the "Federal Tort Claims Act," are cognizable under the act of July 3, 1943 (57 Stat. 372; 31 U. S. C. 223b), as amended, as supplemented by §§ 536.12 through 536.23, Chapter V of this Title.

(c) Claims for damage to or loss of property or for personal injury or death, arising on or after January 1, 1945, within the United States or its territorial possessions, caused by the negligent or wrongful act or omission of military personnel or civilian employees of the Government while acting within the scope of their office or employment are cognizable under the "Federal Tort Claims Act," as supplemented by § 536.29, Chapter V of this Title.

§ 1101.57 *Federal Tort Claims Act.* The National Guard, when not in the Federal service, is not a Federal agency within the meaning of the "Federal Tort Claims Act" (60 Stat. 842, 28 U. S. C. 941, as revised and codified in the act of June 25, 1948, 62 Stat. 982, 28 U. S. C. 2671) and claims arising out of activities of the National Guard are, therefore, not cognizable under that act.

[SEAL] EDWARD F. WITSELL,
Major General, U. S. A.,
The Adjutant General.

[F. R. Doc. 50-1772; Filed, Mar. 3, 1950; 8:53 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 634]

NORTH DAKOTA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 5258 OF JANUARY 9, 1930

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U. S. C. title 43, sec. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 5258 of January 9, 1930, temporarily withdrawing certain public lands in North Dakota for classification and in aid of legislation, is hereby revoked so far as it affects the public lands within the following-described areas:

FIFTH PRINCIPAL MERIDIAN

T. 163 N., R. 57 W.,
Secs. 7 and 8.
T. 163 N., R. 58 W.,
Secs. 12, 13, and 25.
T. 164 N., R. 58 W.,
Secs. 31 and 32.
T. 151 N., R. 62 W.,
Secs. 23, 30, and 34.
T. 153 N., R. 63 W.,
Secs. 8 and 13.
T. 153 N., R. 64 W.,
Sec. 15.
T. 152 N., R. 65 W.,
Secs. 9, 10, 14, 15, and 16.
T. 152 N., R. 66 W.,
Secs. 13, 24, 25, 30, and 35.
T. 153 N., R. 66 W.,
Sec. 13.
T. 154 N., R. 66 W.,
Secs. 20 and 21.
T. 152 N., R. 67 W.,
Sec. 27.
T. 153 N., R. 67 W.,
Sec. 35.
T. 162 N., R. 70 W.,
Sec. 20.
T. 162 N., R. 71 W.,
Secs. 2 and 29.
T. 163 N., R. 72 W.,
Sec. 7.
T. 163 N., R. 73 W.,
Secs. 18 and 24.
T. 164 N., R. 73 W.,
Sec. 29.
T. 154 N., R. 74 W.,
Sec. 30.
T. 162 N., R. 74 W.,
Sec. 5.
T. 163 N., R. 74 W.,
Sec. 33.
T. 164 N., R. 74 W.,
Secs. 25 and 33.
T. 152 N., R. 75 W.,
Sec. 2.
T. 153 N., R. 75 W.,
Sec. 31.
T. 156 N., R. 75 W.,
Sec. 2.
T. 163 N., R. 76 W.,
Sec. 5.
T. 155 N., R. 78 W.,
Sec. 28.
T. 155 N., R. 79 W.,
Sec. 1.

The areas described, including ceded Indian lands and public and non-public lands, aggregate 25,428.83 acres.

The lands are primarily suitable for grazing purposes.

The public lands in sec. 20, T. 162 N., R. 70 W., and secs. 2 and 29, T. 162 N., R. 71 W., are subject to the reservation for the Turtle Mountain Band of Chippewa Indians made by an Executive Order of December 21, 1882, as modified by Executive orders of March 29 and June 3, 1884.

The undisposed-of lands in the sections listed in T. 151 N., R. 62 W., and Tps. 152 N., Rs. 65, 66, and 67 W., are ceded Devies Lake Indian lands, which are subject only to disposition under the homestead and townsite laws and at public sale under section 2455 of the Revised Statutes (U. S. C., title 43, sec. 1171), as amended, with payment of the Indian price of such lands, pursuant to the act of April 27, 1904, 33 Stat. 319, and the Proclamations of June 2, 1904, 33 Stat. 2368, and June 8, 1907, 35 Stat. 2143.

No applications for the remaining lands released by the revocation made